

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
<http://www.courts.state.nh.us>

Court Name: _____
Case Name: _____
Case Number: _____ Charge ID: _____
(if known)

**PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR
CONVICTION FOR PERSONAL POSSESSION OF MARIJUANA (3/4 oz. or less)
OFFENSE OCCURRING PRIOR TO SEPTEMBER 16, 2017**

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name:			Date of Birth:
Address:			
City/Town	State	Zip Code	Telephone Number:
E-mail Address: (optional)			

CHARGE INFORMATION		
RSA/Statute:	Charge: Possession of $\frac{3}{4}$ ounce or less of marijuana	
☐ Arrest no conviction		
Offense Date:	Date of Conviction:	Charge Degree at Conviction:
Description of Sentence and Date Sentence Completed: _____ _____ _____ _____		

Case Name: _____

Case Number: _____

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR CONVICTION

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge and the amount of marijuana alleged to be or in my possession at the time of this charge was $\frac{3}{4}$ ounce or less.

Date

Applicant's Signature

Name of Counsel

Counsel's Signature

Address

Address

COURT COMPLETES:

Date sent to Prosecutor: _____ Sent by (initials): _____

Name of Prosecutor: _____

NOTICE TO PETITIONER

The Prosecutor may object to this petition within 10 days of receiving a copy and may request a hearing. If an objection is received from the prosecutor within 10 days the court will schedule a hearing. At the hearing the prosecutor will be required to establish beyond a reasonable doubt that the petitioner knowingly or purposely obtained, purchased, transported, or possessed, actually or constructively, or had under his or her control, marijuana in an amount exceeding $\frac{3}{4}$ of an ounce.

IT IS ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT

☐ That the of arrest and or the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

CC: ☐ Prosecutor

☐ Defense Attorney

☐ DMV

☐ _____ Police Department

☐ Attorney General

☐ Sentence Review

☐ Defendant

☐ Dept. of Safety – Criminal Records

☐ Dept. of Corrections

☐ Other _____

☐ _____ District Division #